

SECTION 00 52 13 - AGREEMENT BETWEEN OWNER AND CONTRACTOR

018-00406, Burton, MI, Project type: Maintenance

THIS AGREEMENT made on May 28, 2026 between:

Raves Construction and Demolition

Name of Contractor

Hereinafter called the "Contractor", and The Kroger Co. of Michigan, a Michigan corporation hereinafter called the "Owner."

For purpose of this contract KPS, LLC is acting as agent for The Kroger Co. and its subsidiaries and all purchases of goods and services are being made by KPS, LLC for the benefit of the The Kroger Co. and its subsidiaries.

WITNESSETH, that the Contractor and the Owner for the consideration hereinafter named, agree as follows:

1. CONTRACT DOCUMENTS

The Trade Proposal, the Instructions to Bidders, the Contractor's Construction Progress Schedule, the General Conditions of the Contract, the Specifications and the Drawings, including any Addenda issued prior to Contract date, together with this Agreement and all attachments, shall form the Contract as if hereto attached or herein repeated.

2. SCOPE OF WORK

The Contractor shall furnish all the materials, labor, equipment, tools and supervision, and shall do everything necessary to complete the Work for:

Kroger - Michigan

Store # 018-00406

Project Type Maintenance

1200 E Bristol Rd, Burton, MI, 48529

as shown on the drawings and as described in the specifications dated May 7, 2024 prepared by Owner and shall do everything required and implied by the Contract Documents. Completion of the Work is defined as all Work included on Drawings and in the Specifications (Section 00 thru 49). The Work shall be totally operable and safe.

3. DATE OF COMMENCEMENT AND TIME FOR COMPLETION

Contractor shall commence physical construction of the Project in the field on _____.

Final completion of the physical construction of the Project shall be no later than _____,

1 calendar days after commencement of physical construction of the Project.

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Within seven calendar days after notification that the Owner has accepted the Contractor's proposal and has presented a written Agreement to the Contractor for signature, an authorized representative of the Contractor shall execute the Agreement and return same to the Owner. If the Contractor does not return the Agreement within the allotted time frame, the Contractor shall be deemed to be in breach of Contract, at which time the Owner shall have the right, but not the obligation to reject the Contractor's proposal and begin negotiations with one or more of the other Bidders. Within (15) fifteen calendar days of receipt of Agreement executed by the Contractor, the Owner shall execute the Agreement and return a copy of the fully executed Agreement to the Contractor, and at the Owner's sole discretion, also issue a Notice to Proceed to the Contractor in the form substantially attached hereto.

Notice to Proceed, if provided, shall take precedence over the Agreement when determining commencement date of physical construction and completion date. Said Notice to Proceed shall be issued by facsimile transmittal, email and/or overnight mail. The Contractor shall commence physical construction of the Project in the field within five calendar days after the issuance of the Notice to

Proceed or executed Agreement, and shall be fully completed no later than
calendar days after the Notice to Proceed or executed Agreement.

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Reference attachment "A - Project Milestone Schedule" for required dates to be met by the Contractor while performing Work. All time deadlines set forth in the attachment, including the date for completion of the Project are of the essence of this Agreement.

The Contractor shall be liable to the Owner for the sum of \$3000.00 (Three Thousand Dollars) for each day that the Completion Date is exceeded in the completion of the Project. The sum is hereby fixed and agreed as liquidated damages and not as a penalty; it being understood that the damages which the Owner will suffer in such an event are not subject to accurate calculation. The Owner shall be entitled to deduct any liquidated damages due hereunder from the Contract Sum as hereunder defined. Should the liquidated damages exceed that portion of the Contract Sum owed to Contractor, Contractor shall promptly pay the Owner the difference.

4. THE CONTRACT SUM

The Owner shall pay the Contractor for the performance of the Contract subject to the additions and deductions provided herein in current funds, the sum of:

The Contract Sum

\$190,940.00

Contract Sum in Numbers

One Hundred Ninety Thousand Nine Hundred Forty Dollars and No Cents

Contract Sum in Text

CONTRACT SUM BREAKDOWN

Base Contract Amount

\$190,940.00

No Alternates are Accepted in this Contract

No.	Description	Add/Deduct	Amount (+/-)

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5.1 PROGRESS PAYMENTS

On or about the first of each month, the Contractor shall submit for payment for 90 percent of the value (based on the Contract Sum) of the labor and materials incorporated in the Work and of materials suitably stored at the site thereof up to the first day of the month, less the aggregate of previous payments; and upon substantial completion of the entire Work, a sum sufficient to increase the total payments to 90 percent of the Contract Sum. The monthly statements to the Owner shall be itemized and submitted to the Owner on form entitled "Request for Payment" which will be supplied by the Owner, a sample of which is herein included.

Upon the Contractor submitting a complete and accurate Request For Payment and required additional documentation to the Owner, the Owner will expeditiously begin processing payment to the Contractor, and if said Request For Payment is found to be in order, Owner will process said payment with the intent that payment to the Contractor will be issued in 20 business days. Schedule of additional documents required when submitting progress payment is referenced in Article 9 of the General Conditions.

5.2 FINAL PAYMENT

Upon receipt of prior written notice that the Work is ready for final inspection and acceptance, the Owner shall promptly make such inspection. When the Owner determines the Project is acceptable under the Contract and the Contract fully performed, the entire balance due the Contractor shall thereupon be payable.

Before such final payment is made, the Contractor shall submit evidence satisfactory to the Owner that Article 9 of the General Conditions has been completed.

Schedule of additional documents required when submitting final payment is referenced in Article 9 of the General Conditions.

6. TERMINATION OR SUSPENSION

The Contract may be terminated by the Owner or the Contractor as provided in Article 14 of the General Conditions.

The Work may be suspended by the Owner as provided in Article 14 of the General Conditions.

7. MISCELLANEOUS PROVISIONS

Where reference is made in the Agreement to a provision of the General Conditions or another Contract Document, the reference refers to that provision as amended or supplemented by other provisions of the Contract Documents.

8. ENUMERATION OF CONTRACT DOCUMENTS

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The Drawings, as defined in Division 00 Section "General Conditions," except for modifications issued after execution of the Agreement are enumerated as indicated on the Drawings.

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The Project manual, as defined in Division 00 Section "General Conditions, " issued on the date indicated on the cover, and Addenda, if any, consist of those Divisions and Sections hereunder, as enumerated in the Table of Contents.

No Addenda is Accepted in this Contract

Addenda No	Date	Addenda No	Date
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

9. FALL PROTECTION

Contractor shall provide and require the use of conventional fall protection, i.e. personal fall arrest systems, safety net systems or guardrail systems as defined in 29 CFR 1926.502 when its employees or subcontractors are performing construction work that is in excess of six feet above a lower level.

10. STORM WATER DISCHARGE

Contractor shall apply for and obtain all permits and certifications required by federal, state, or local authorities having jurisdiction over the Project. All required inspections, reports, sampling, and documentation are the Contractor's responsibility under the laws and regulations of the governing authorities and in coordination with the Contract Documents and the Storm Water Pollution Prevention Plan (SWPPP). The Contractor acknowledges that government regulations, at a minimum, will apply to any land disturbance greater than one acre or part of a larger overall development. Even if the Contractor is not performing the sitework, the Contractor must comply with all responsibilities under the law and the Agreement.

11. CONSTRUCTION WASTE MANAGEMENT AND DISPOSAL

Contractor shall follow the guidance and procedures of Construction Waste Management and Disposal as established in the General Conditions and specification section 017419 of this Project.

12. PURCHASING AGENT FOR OWNER

For purpose of this contract KPS, LLC is acting as agent for The Kroger Co. and its subsidiaries and all purchases of goods and services are being made by KPS, LLC for the benefit of the The Kroger Co. and its subsidiaries.

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13. COUNTERPARTS; ELECTRONIC SIGNATURES

This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which counterparts taken together shall constitute but one and the same instrument. Any party may deliver its signature (including via electronic signature programs such as DocuSign) to this Agreement by telecopy or electronic means (such as email, PDF and the like) and any party who receives an executed signature page from another party by telecopy or electronic means may rely upon said signature as if it was a signed original.

IN WITNESS WHEREOF, the parties hereto have executed this AGREEMENT, the day and year first above written.

CONTRACTOR

Signature

Print Name

Print Title

Raves Construction and Demolition

Company

OWNER

Signature

TROY HARDING

Name

DIVISION PRESIDENT

Title

The Kroger Co. of Michigan, a Michigan corporation

Company

END OF SECTION 00 52 13